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Tentative Ruling

Issued By: DTT **on** 5/11/2026.
(Judge's initials) (Date)

(41)

Tentative Ruling

Re: ***City of Selma, a municipal corporation v. Fernando Santillan***
Superior Court Case No. 25CECG05076

Hearing Date: May 12, 2026 (Dept. 501)

Motion: by Defendant to Strike (Anti-SLAPP) Plaintiff's Complaint
by Defendant Demurring to Plaintiff's Complaint

Tentative Ruling:

To grant the special motion by defendant Fernando Santillan (Santillan) to strike the Complaint for Declaratory Relief filed by plaintiff City of Selma (Selma), without prejudice to Selma raising the claims in a previously-filed action by Santillan in this court (Case No. 25CECG04748).

To find the demurrer moot in light of the special motion to strike.

Santillan is directed to submit to this court, within seven days of service of the minute order, a proposed judgment consistent with the court's order dismissing this action.

Explanation:

Santillan filed a demurrer and a special motion to strike (anti-SLAPP) Selma's Complaint for Declaratory Relief (Complaint), which contains a single cause of action for declaratory relief.

Anti-SLAPP (Special Motion to Strike)

A special motion to strike or anti-SLAPP motion (Strategic Litigation Against Public Participation) provides a procedural remedy to dismiss nonmeritorious litigation brought "primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for redress of grievances." (Code Civ. Proc., § 425.16, subd. (a).)

The anti-SLAPP statute permits a defendant whose free speech rights or the right to petition have been infringed to move the court to strike the SLAPP suit. The anti-SLAPP statute may be invoked to challenge suits based on four different categories of speech:

- (1) statements made before a legislative, executive, judicial, or other official proceeding;
- (2) statements made in connection with an issue being considered by a legislative, executive, or judicial body;
- (3) statements made in a public forum or in connection with an issue of public interest; or
- (4) any other conduct in furtherance of the exercise of the constitutional right of petition or free speech, in connection with an issue of public interest.

(Code Civ. Proc., § 425.16, subd. (e).) Categories (1) and (2) are not limited to issues of public interest, while categories (3) and (4) are limited to issues of public interest. (*Ibid.*)

The California Supreme Court has established a two-step process to litigate an anti-SLAPP motion:

First, the moving defendant bears the burden of establishing that the challenged allegations or claims arise from protected activity in which the defendant has engaged. Second, for each claim that does arise from protected activity, the plaintiff must show the claim has at least minimal merit. If the plaintiff cannot make this showing, the court will strike the claim.

(*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009, internal quotation marks and citations omitted.) The anti-SLAPP statute is to be broadly construed. (Code Civ. Proc., § 425.16, subd. (a).) "The anti-SLAPP statute does not insulate defendants from any liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, *meritless* claims arising from protected activity." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384, italics original (*Baral*) [holding court may strike portions of a "mixed" cause of action arising from protected and unprotected activities].)

First Prong—Threshold Burden

The first prong requires the moving party to make a prima facie showing that the cause of action arises from constitutionally protected free speech or petition activity. Several cases have determined that the anti-SLAPP statute protects litigation settlements:

A settlement agreement executed in the context of active litigation is "made in connection with an issue under consideration or review by a ... judicial body." (Code Civ. Proc., § 425.16, subd. (e); *Navellier v. Sletten* (2002) 29 Cal.4th 82, 85–86, 87 (*Navellier*) [finding defendant's negotiations and execution of release to be protected activity]; *Seltzer v. Barnes* (2010) 182 Cal.App.4th 953, 958, 963–967 (*Seltzer*) [reversing denial of anti-SLAPP motion in homeowner's action for fraud in connection with settlement negotiations in underlying lawsuit]; *GeneThera, Inc. v. Troy & Gould Professional Corp.* (2009) 171 Cal.App.4th 901, 908 [affirming grant of anti-SLAPP motion in lawsuit based on firm's communication of settlement offer]; *Dowling v. Zimmerman* (2001) 85 Cal.App.4th 1400, 1420 [attorney's negotiation of stipulated settlement in unlawful detainer action was protected conduct]; see also *Monster Energy Co. v. Schechter* (2019) 7 Cal.5th 781, 788–789 ["It is undisputed that defendants met their first-step showing" that allegedly breached settlement agreement involved protected activity].)

(*O&C Creditors Group, LLC v. Stephens & Stephens XII, LLC* (2019) 42 Cal.App.5th 546, 566–567 [listing cases holding litigation settlements covered by anti-SLAPP statute].)

In its Complaint, Selma seeks to invalidate three agreements that Selma describes as follows: (1) a Revised Employment Agreement that greatly enhances Santillan's compensation as City Manager, purportedly attached as exhibit A,¹ approved by a 3-2 vote of the Selma City Council on February 6, 2023; (2) a Settlement and General Release Agreement (Settlement Agreement) between Santillan and Selma approved by the Selma City Council on a 3-2 vote on May 20, 2024, that resolves complaints against Selma made by Santillan with two state agencies—the California Civil Rights Department (Case No. 202210-18408001) and the California Labor Commissioner Retaliation Unit (State Case No. RCI-CM-961783)²; and (3) an Addendum to the Revised Employment Agreement (Addendum), approved on November 18, 2024, by Minute Order issued on a 3-2 vote, by the Selma City Council, purportedly in accordance with the terms of the Settlement Agreement.³

Santillan argues that Selma's Complaint "is based, at least in part, on [Santillan] pursuing and resolving the employment related claims [Santillan] brought against [Selma]." (Memo., p. 1:18-19.) Santillan contends the Complaint "at paragraphs 13, 21, 23, 24, and 25 must be stricken to the extent they are based upon [Santillan's] statements made during the proceeding and settlement of the [administrative agency] matters[.]" (*Id.*, at p. 2:1-3.)

Selma concedes the filing of Santillan's two administrative complaints and the making of the Settlement Agreement are protected by the anti-SLAPP statute. (Opp., p. 6:20-21.) The court finds Santillan makes a prima facie showing that the challenged paragraphs arise, at least in part, from protected activity.

Second Prong—Probability of Success on the Merits

Because the court finds Santillan makes a prima facie showing that the gravamen of the Complaint arises from protected activity, the burden shifts to Selma to proffer sufficient evidence to establish the probability of prevailing on its claims. (Code Civ. Proc., § 425.16, subd. (b)(1). To satisfy its burden, Selma may not merely rely on the allegations in the Complaint or evidence that would be inadmissible at trial. (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546 [reversing trial court's order denying anti-SLAPP motion to strike plaintiffs' declaratory relief cause of action].)

In *Baral*, the California Supreme Court restated the required analysis for the second prong when the moving party challenges part of a pleading:

For the benefit of litigants and courts involved in this sometimes difficult area of pretrial procedure, we provide a brief summary of the showings and findings required by section 425.16(b). At the first step, the moving defendant bears the burden of identifying all allegations of protected

¹ In fact, exhibit A is a copy of the original employment agreement dated December 6, 2021.

² An unsigned and undated copy of the Settlement Agreement is attached to the Complaint as exhibit B. Selma alleges, on information and belief, that an executed Settlement Agreement was purged from the City's records. (Comp., ¶ 11.)

³ The Addendum is described in the Complaint, but not attached. The resolution repealing the Addendum's approval is attached to the Complaint as exhibit C.

activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached. There, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. The court, without resolving evidentiary conflicts, must determine whether the plaintiff's showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment. If not, the claim is stricken. Allegations of protected activity supporting the stricken claim are eliminated from the complaint, unless they also support a distinct claim on which the plaintiff has shown a probability of prevailing.

(*Baral, supra*, 1 Cal.5th at p. 396.)

Here, the Complaint contains a single cause of action for declaratory relief. Code of Civil Procedure section 1060 authorizes declaratory relief causes of action. That section provides:

Any person interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property, or with respect to the location of the natural channel of a watercourse, may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract. He or she may ask for a declaration of rights or duties, either alone or with other relief; and the court may make a binding declaration of these rights or duties, whether or not further relief is or could be claimed at the time. The declaration may be either affirmative or negative in form and effect, and the declaration shall have the force of a final judgment. The declaration may be had before there has been any breach of the obligation in respect to which said declaration is sought."

(Code Civ. Proc., § 1060.)

Declaratory relief is not available to redress past wrongs. (*Lee v. Silveira, supra*, 6 Cal.App.5th at p. 549.) Declaratory relief must address future rights:

Declaratory relief operates prospectively to declare future rights, rather than to redress past wrongs. [Citation.] Where . . . a party has a fully matured cause of action for money, the party must seek the remedy of damages, and not pursue a declaratory relief claim.

(*Canova v. Trustees of Imperial Irrigation Dist. Employee Pension Plan* (2007) 150 Cal.App.4th 1487, 1497 (*Canova*) [declaratory relief unavailable to invalidate changes made to retirement plan].) Selma's cause of action for declaratory relief seeks to "void"

the Revised Employment Agreement, Settlement Agreement and Addendum, and obtain an "award" of all compensation Selma has paid under each contract. (Comp., p. 10:21-26.) Declaratory relief is unavailable to redress these past wrongs.

Furthermore, a court may refuse to grant declaratory relief if it determines that such relief "is not necessary or proper at the time under all the circumstances." (Code Civ. Proc., § 1061.) The court takes judicial notice of the pleadings in a prior action pending between the same parties addressing the same documents, entitled *Fernando Santillan v. City of Selma*, Superior Court Case Number 25CECG04748 (Prior Action), filed in this court on October 8, 2025, by Santillan as the plaintiff and Selma as the defendant. Selma may pursue the relief it seeks in the Prior Action. Therefore, declaratory relief is unnecessary.

In sum, Selma seeks redress of alleged past wrongs in its Complaint. But declaratory relief is unavailable for such purposes. (*Lee v. Silveira, supra*, 6 Cal.App.5th at p. 549; *Canova, supra*, 150 Cal.App.4th at p. 1497.) Nor is declaratory relief necessary. The court concludes Selma cannot show a probability that it will prevail on its claims for declaratory relief.

Conclusion

In summary, the court finds Santillan meets his burden to show the Complaint arises from protected activity. The burden then shifts to Selma to demonstrate a likelihood of prevailing on its claims for declaratory relief, which it cannot do. Therefore, the court grants Santillan's anti-SLAPP motion and strikes the Complaint, without prejudice to Selma asserting its claims in the Prior Action.

Demurrer

In light of the above, the court need not reach the merits of the demurrer.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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